

Tentative Rulings for June 25, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG04918	<i>Megan Clifton v. Thomas Flores</i> is continued to Tuesday, July 28, 2026, at 3:30 p.m. in Department 403.
-------------	---

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 403

Begin at the next page

(35)

Tentative Ruling

Re: ***In re Athaniel Candelas***
Superior Court Case No. 26CU00381

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant. Orders signed. No appearances necessary.

Explanation:

On this occasion only, due to the impacted state of its docket, the court considers the petition to compromise the claim of minor Athaniel Candelas from its previously designated expedited status without obtaining a new hearing date for the different petition type.

Upon review of the supplemental declaration, the court notes that the authority cited to address the issue of use of "lien-based providers" is not directly relevant. (See *Pebley v. Santa Clara Organics, LLC* (2018) 22 Cal.App.5th 1266, 1276-1277; *Qaadir v. Figueroa* (2021) 67 Cal.App.5th 790, 802-803.) There, the issues addressed were the admissibility of evidence to prove past and future medical damages as to liability against a defendant. Thus, the obligation to mitigate damages was considered where a plaintiff elected to seek treatment without the benefit of utilizing private insurance. In other words, these cases address admissibility of evidence in mitigation of damages.

Here, mitigation is not against an alleged liable third party. "Mitigation" is against the minor's own recovery. While a plaintiff may elect to obtain treatment outside of available insurance in favor of specialists who do not accept the insurance or are "more willing to participate in the litigation process" (*Qaadir v. Figueroa, supra*, 67 Cal.App.5th at p. 803), it is also recognized that "a medical care provider's billed price for particular services is not necessarily representative of either the cost of providing those services or their market value" (*Howell v. Hamilton Meats & Provisions, Inc.* (2011) 52 Cal.4th 541, 565). The billed prices here are scrutinized not as a mitigation factor, but for their costs of services rendered and billed against the minor and the minor's recovery.

In spite of the above argument by counsel not being well taken, the petition appears to be otherwise sufficiently stated. The petition reports that the minor, inclusive of the services received, has fully recovered. Importantly, counsel attests that the function of the services received was not intended to bypass Medi-Cal reimbursements, but to expedite care to the minor. (Ambarchyan Decl., ¶ 9.) Counsel further negotiated reductions in light of the gross recovery. Accordingly, the petition as amended is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

(03)

Tentative Ruling

Re: ***BDHOV, LP v. Benitez***
Case No. 24CECG04880

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiffs' Application for Default Judgment

Tentative Ruling:

To grant plaintiffs' application for default judgment condemning a portion of defendants' property for the purpose of an easement for the purpose of installing, constructing, inspecting, and maintaining utilities to plaintiffs' property. (Civ. Code, § 1001.)

Explanation:

"Any owner of real property may acquire by eminent domain an appurtenant easement to provide utility service to the owner's property." (Civ. Code § 1001, subd. (b).) The easement is limited to use for water, gas, electric, drainage, sewer, or telephone service. (Id. at § 1001, subd. (a).) In order to acquire the easement, the condemning party must prove by a preponderance of the evidence that there is a "great necessity" for the taking, that the location to be condemned provides the most reasonable service to the property and the least damage to the burdened property, and the hardship to the condemning party "clearly outweighs" the hardship to the owner of the burdened property. (Id. at § 1001, subd. (c)(1)-(3); *Linggi v. Garovotti* (1955) 45 Cal.2d 20, 27.)

The requirement of "great necessity" is a stricter standard and more difficult to prove than the usual standard for eminent domain by a public agency of "public interest and necessity." (*Linggi v. Garovotti, supra*, 45 Cal.2d at p. 27.) "'Great necessity' will exist only when a condemnation alternative is the sole reasonably acceptable means of providing utility service to a piece of property." (*L & M Professional Consultants, Inc. v. Ferreira* (1983) 146 Cal.App.3d 1038, 1051.)

In the case at bench, plaintiffs are seeking a default judgment of an order of condemnation of a portion of real property located at 2010 South Hazelwood Boulevard in Fresno, California, owned by defendants Andrew Benitez, Sr., and Mary Hellen Benitez for the purpose of a utility easement. Plaintiffs are the owners of 1935 South 3rd Street in Fresno, California, and in attempting to reconnect utility services with Pacific Gas and Electric Company learned a new connection would need to be established. (Hovannisian Decl., ¶¶ 2, 5-6.) Without the utilities easement, plaintiffs will be unable to bring the property to a habitable state and risk condemnation by the City of Fresno. (Id. at ¶ 10.)

Plaintiffs originally believed that the easement could be located at either the Hazelwood property owned by the Benitezes, or the 1919 property owned by Ulloa and Arce. (Id. at ¶ 8.) However, they were later informed by PG&E that the 1919 property

was not a feasible location for the easement, and that it would need to be located on the Hazelwood property. (*Ibid.*) Plaintiffs also originally believed that the easement might be either for above or below-ground utilities. (*Id.* at ¶ 9.) However, after the filing of the complaint, plaintiffs were informed by PG&E that the utilities would have to be installed above ground. (*Ibid.*)

Plaintiffs engaged Real Property Analysts to prepare a valuation the proposed utilities easement. (Stevens Decl., ¶ 2, Hovannisian decl., ¶ 11.) The final appraisal value is \$2,450. (*Id.* at ¶ 4, Ex. A.) The amount will be deposited with the court upon the court signing the order granting permission to lodge the funds. (Hovannisian Decl., ¶¶ 11, 12.) Plaintiffs will be more burdened than defendants if the easement is not granted, since the residence on their property will be uninhabitable and the City could demolish the residence at the cost of \$37,000 to plaintiffs. (*Id.* at ¶ 13.) Plaintiffs' property will be essentially unmarketable and of no value without the necessary utilities. (*Ibid.*)

Plaintiffs have also submitted the declaration of Ryan Chairez, Senior New Business Representative for PG&E, who attests to plaintiffs having contacted PG&E to connect utilities for the plaintiffs' property and his informing them that a new design for the connection was required. (Chairez Decl., ¶ 1-3.) Chairez identified the Benitez property as property for which an easement was needed for PG&E's approved design to provide electrical service to plaintiffs' property. (*Id.* at ¶ 3.) PG&E originally determined that the easement could also be located at 1919 S. 3rd Street in Fresno. (*Id.* at ¶ 4.) However, after speaking with the property owner, the owner stated that he had no interest in allowing the utilities to be installed on his property. (*Ibid.*) Thus, the only remaining option is to install the utilities across the Hazelwood property. (*Ibid.*)

Chairez also states that "[i]n comparison to an above-ground utility installation, an underground installation consists of a larger clearance area and to maintain it would require digging into the ground to conduct any necessary construction, reconstruction, replacement, or maintenance." (*Id.* at ¶ 5.) Chairez attempted to contact the property owners, to obtain an easement through their property; however, he had no success in obtaining an easement deed. (*Id.* at ¶ 6.)

Thus, plaintiffs have now provided evidence demonstrating their need for a utilities easement, and that the condemnation of a portion of the Benitez property is the sole reasonably acceptable means of providing utility service to plaintiffs' property. Plaintiffs have now submitted a declaration from PG&E's representative, Ryan Chairez, who states that, due to the delay in remodeling plaintiffs' property, "a system upgrade was required, and the prior utilities service point was not usable because of the need for a new panel." (Chairez decl., ¶ 3.) Thus, plaintiffs have now submitted evidence that explains why the existing power infrastructure is inadequate and needs to be upgraded.

Chairez has also now clarified that the easement will be used to construct and install above-ground utilities power lines. He also states that the only possible option for installing the utilities is to obtain an easement on the Benitez's property, as the owner of the other adjacent property has refused to consent to have the easement on his property.

Plaintiffs have also provided evidence showing that they will suffer great harm if the order condemning the Hazelwood property to install the easement is not granted, as their property will be left without power and the City will likely require them to demolish the residence on the property at the cost of approximately \$37,000. Their property will be left essentially useless and unmarketable, as it has no utilities service. Thus, plaintiffs are likely to suffer substantial harm if the order is not granted.

While plaintiffs have not submitted evidence on the question of the relative harm to defendants' property rights, it appears that the harm would be relatively small in comparison to the harm plaintiffs will suffer if the order is not granted. The easement is for a relatively small portion of defendants' parcel, and it will be used to install power poles and lines, which should not take up much space or create any harm to the surrounding parcel. Therefore, the court intends to find that plaintiffs have met their burden of showing that the harm to defendants will be minimal compared with the harm to the plaintiffs if the order is not granted.

As a result, the court intends to grant the requested default judgment condemning defendants' parcel to allow installation of the utilities.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** June 24, 2026.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Okwelogu v. BSR Trucking Inc., et al***
Superior Court Case No. 26CU01127

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders. In the event that oral argument is requested minor is excused from appearing.

Explanation:

The petition to compromise minor's claim arises from a motor vehicle accident that occurred on December 23, 2021. According to the petition at item 6., the minor received no injuries and, according to the petition at item 12., the minor paid no medical expenses. However, the Mark Nagle Declaration at paragraph two indicates that the minor suffered minor injuries and was evaluated at the emergency room. No records were provided of the costs or the evaluation that occurred at that visit to the emergency room. Depending on the extent of injuries, additional records of recovery may also be required.

Additionally, Attachment 18b(2) of the petition, which identifies the bank the money will be deposited in, is missing from the petition.

Finally, to the extent documents identify petitioner as guardian ad litem, no order granting guardian ad litem status is on the court's docket.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 24, 2026 .
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Mayra Aguirre vs. General Motors, LLC**
Superior Court Case No. 25CECG03657

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiffs', Mayra Aguirre and Jermaine Aguirre Motion for Payment of Attorney Fees and Reimbursement of Costs and Expenses

Tentative Ruling:

To grant the motion for attorney fees in the amount of \$18,690.80. Payment shall be made by defendant General Motors, LLC to Premier Legal Center, APC. within 30 days of the clerk's service of this minute order.

Explanation:

Plaintiffs', Mayra Aguirre and Jermaine Aguirre ("plaintiffs") counsel Premier Legal Center, APC. ("Counsel" or "Premier Legal") seeks \$57,514.55 in fees and costs including (1) \$36,150 in lodestar fees; (2) a 1.5 multiplier enhancement in the amount of \$18,075; and (3) an additional \$3,289.55 in incurred costs and expenses, against General Motors, LLC ("defendant" or "GM.")

Right to Recovery

An award of attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b); 1033.5, subd. (a)(10).) Here, the Song-Beverly Act authorizes a buyer "to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Attorney Fees Incurred

A buyer prevailing under the Song-Beverly Act may recover "reasonable" attorney fees and costs as determined by the Court. (Civ. Code § 1794, subd. (d).) "The burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (*Gonzalez v. Santa Clara County Dept. of Social Services* (2017) 9 Cal.App.5th 162, 169.) In determining a reasonable fee award, the Court begins with the lodestar method of calculation, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095–1096.)

Here, plaintiffs' counsel seeks to recover \$36,150 in lodestar fees for 63.1 hours of work, billed at the following rates:

	Title	Rate Per Hour	Total Hours	Total Amount Billed
Steve Marchbanks	Attorney	\$700	36.5	\$25,550
Jermina Landstrom	Attorney	\$500	13.1	\$6,550
Jordan Nelson	Paralegal	\$300	13.5	\$4,050
TOTAL		-	63.1	\$36,150

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, "*Ketchum*".) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.)

The rates for plaintiff's counsel are higher than Central California's going rates for comparable consumer litigators. Plaintiff's counsel rates are: \$700 for Steve Marchbanks (23 year lawyer specializing in the Song-Beverly Consumer Warranty Act); and \$500 per hour for Jermina Landstrom (11+ year lawyer specializing in Song-Beverly Consumer Warranty Act). (Marchbanks Decl., ¶¶ 12-16.)

Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing...that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.) Plaintiffs have made no showing of any attempt to seek local counsel. There are local counsel who handle similar cases. Local rates are therefore appropriate.

Here, based on relevant experience, and consistent with prevailing rates for attorneys of comparable experience handling routine Song-Beverly matters in Fresno County, the Court finds that the applicable rate for Marchbanks is \$650 per hour; and \$450 per hour for Landstrom. Furthermore, the Court finds that the applicable paralegal rate in Fresno to be \$200/hr, for a paralegal with Nelson's experiences.

Hours Expended

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.' " (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, citing *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) The court will exercise its discretion in determining if the Plaintiff's attorney fees request is reasonable by considering the following factors: the nature of litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.)

Plaintiff's counsel recorded 63.1 hours of attorney time as well as time spent by paralegals. This figure also includes 11 anticipated hours, that are addressed below.

GM points to many activities as being overbilled, noting that plaintiff's counsel relied on templates and forms in preparing the complaints and discovery responses, as well as duplicative review of motions. (GM Opposition, pgs. 5:13-8:14.) The court reviewed the entries to which GM objects and finds numerous fees to be above the accepted norm. For instance, the Court reduced Marchbanks time in drafting a templated complaint. The Court also found some of Marchbanks efforts in scheduling, and corresponding during mediation, excessive, where some of the tasks recorded by Marchbanks were purely for scheduling, and the time reviewing a straightforward settlement agreement was above the norm. Furthermore, there were several instances of duplicative review by both Marchbanks and Landstrom, and the Court apportioned time between the two attorneys. Furthermore, the time spent by Landstrom in preparing for a straightforward mediation, which she did not attend, was also excessive. Accordingly, the Court reduced attorney time to 21.35 hours.

Time entries for Nelson were separately analyzed below with respect to "Clerical/Administrative Tasks."

Clerical/Administrative Tasks

Paralegal fees may be awarded as attorney fees if the trial court deems it appropriate. (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.) However, purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a greatly reduced billing rate. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1187; Ridgeway v. Wal-Mart Stores Inc. (N.D. Cal. 2017) 269 F.Supp.3d 975, 991.)

Plaintiffs' counsel initially submitted 13.5 hours of paralegal time. The court reduces the applicable billing time for the paralegals to be 0.25 hours, reducing recoverable time by the paralegals by 13.25 hours. The Court notes that much of the paralegal's recorded time was either clerical or administrative, such as the coordination of pleadings, scheduling mediation, and correspondence between the parties. Furthermore, the Court notes numerous duplicative efforts where the paralegal and attorneys reviewed the same responses and correspondences.

Anticipated Hours

Additional Time Opposing this Motion

Plaintiffs' counsel expected to spend 11 hours, in connection with (1) reviewing Defendant's Opposition to Plaintiff's Motion; (2) preparing the Reply brief to Defendant's Opposition; and (3) attending the hearing on Plaintiff's Motion, between attorneys Marchbanks and Landstrom. (Marchbanks Decl., ¶ 4, Ex. F.)

The Court finds the anticipated time of 11 hours to be excessive for the purposes of reviewing and drafting a reply. Accordingly, the Court reduces the anticipated time by 7 hours in connection to fees to reply to GM's opposition, and that 4 hours under these circumstances is reasonable to review and file an reply.

Reasonableness of Multiplier

Relevant factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ketchum, supra*, 24 Cal.4th at 1132.)

Plaintiff's counsel requests that a multiplier of 0.5 be applied to the combined lodestar. (Plaintiffs' Moving Papers, pps. 7:8-8:2.) Plaintiff argues that the factors that should be looked at in this case are the outcome received by the plaintiff's counsel, risks posed by the litigation, and the opportunity costs of losing other potential clients.

In opposition, defendant argues that there is no basis to award a multiplier as there was minimal litigation with the case settling after 6 months, that plaintiff's counsel failed to provide any basis that they couldn't take on new clients, and the contingent risks in this case were minimal. (GM's Opposition, pps. 8:14-10:7.)

The Court finds that the results of this case are not exceptional and awarding a multiplier is not warranted because the time and skill of counsel, as well as the contingent nature of the representation, are compensated with high fees. Plaintiff's counsel also failed to show how this case is different from other lemon law actions or presented new or complex issues that made this case particularly hard to litigate. Furthermore, this case was filed, negotiated, and settled in six months, well before the formal litigation process even began.

Costs

Plaintiffs include a request for an award of costs in the amount of \$3,289.55. Civil Code section 1794, subdivision (d) provides that a plaintiff may recover "the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." As *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42 explained, "[T]he Legislature intended the phrase 'costs and expenses' to cover items not included in 'the detailed statutory definition of 'costs' ' set forth in Code of Civil Procedure section 1033.5." (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42.)

Defendant opposes these expenses on the grounds that plaintiff cannot them because he did not file a verified memorandum of costs. (GM's Opposition, pg. 12:3-4.) Defendant cites no authority holding that rule applies to expenses under Civil Code section 1794, subdivision (d).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: SMC on June 24, 2026
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Carillo v. Jireh Packing Company***
Superior Court Case No. 24CECG01937

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Final Approval of Class Action Settlement

Tentative Ruling:

To deny, without prejudice.

The court sets the matter for a status conference on Tuesday, December 15, 2026 at 3:30 p.m. in Department 403. The parties are to file a declaration regarding the status no later than November 17, 2026.

Explanation:

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769(g).) "The trial court has broad discretion to determine whether a class action settlement is fair. It should consider factors such as the strength of plaintiffs' case; the risk, expense, complexity and likely duration of further litigation; the risk of maintaining class action status through trial; the amount offered in settlement; the extent of discovery completed and the stage of the proceedings; the experience and views of counsel; the presence of a governmental participant; and the reaction of the class members to the proposed settlement." (*Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 336.)

The court previously vetted the fairness of the settlement through prior hearings, each with its own filings. While the court granted preliminary approval of the class action settlement on January 30, 2026, this was as to an estimated class of 188 members. In this motion for final approval, the class size has dramatically increased by more than double the amount to 436 class members. As the court's preliminary approval as to the fairness of the settlement was based on a significantly smaller class than is now presented, plaintiff will need to address how the same settlement amounts remain fair. Additionally, the court is concerned that the expert also relied on an estimated class of 188 class members in evaluating the claims here. (Berger Decl., filed January 9, 2026, ¶ 7.) In light of this, the court has serious misgivings regarding whether this settlement remains fair. Thus, the motion is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 24, 2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Stevens v. Delray Tire & Retreading, Inc.**
Superior Court Case No. 23CECG02097

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Final Approval of Class Action Settlement

Tentative Ruling:

To grant, but limit the attorney fee award to \$69,150. The difference shall be added to the net settlement to be distributed to the settlement class members. Class counsel shall submit to the court a proposed judgment consistent with the law and motion order within seven days of service of the minute order by the clerk.

To also order the parties to return on Thursday, February 11, 2027, at 3:30 p.m. in Department 403 to inform the court of the total amount actually paid to the class members, pursuant to Code of Civil Procedure section 384, subdivision (b), so that the judgment can be amended and the distribution of any cy pres funds can be ordered. Documentation as to the amount paid to class members must be filed on or before January 28, 2027.

Explanation:

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769(g).) "The trial court has broad discretion to determine whether a class action settlement is fair. It should consider factors such as the strength of plaintiffs' case; the risk, expense, complexity and likely duration of further litigation; the risk of maintaining class action status through trial; the amount offered in settlement; the extent of discovery completed and the stage of the proceedings; the experience and views of counsel; the presence of a governmental participant; and the reaction of the class members to the proposed settlement." (Reed v. United Teachers Los Angeles (2012) 208 Cal.App.4th 322, 336.)

The court has vetted the fairness of the settlement through prior hearings, each with its own filings. The settlement here generally meets the standards for fairness, and the class has approved it, with no objections, disputes, or requests for exclusion. Only 10 of 120 notices were undeliverable. The court finds that the method of notice followed, which this court approved at the prior hearing, comports with due process and was reasonably calculated to reach the absent class members:

"Individual notice of class proceedings is not meant to guarantee that every member entitled to individual notice receives such notice," but "it is the court's duty to ensure that the notice ordered is reasonably calculated to reach the absent class members." [Citations.] After such appropriate notice is given, if the absent class members fail to opt out of the class action, such members will be bound by the court's actions, including settlement and judgment, even though those individuals never actually

receive notice. Cooper, 467 U.S. at 874, 104 S.Ct. 2794; 7B Charles Alan Wright, Arthur R. Miller & Mary Kay Kane, *Federal Practice and Procedure* § 1789 (2d ed.1986).

(*Reppert v. Marvin Lumber and Cedar Co., Inc.* (1st Cir. 2004) 359 F.3d 53, 56-57 emphasis added.)

Calculation of Class Member Payments

Based on the number of class members known to be participating, Ms. Islas of Phoenix Settlement Administrators calculates the net settlement fund to be \$149,440.83 after deducting attorney fees and costs, the administration costs of \$6,750, and the class representative award totaling \$7,500. (Islas Decl. ¶ 13.) The highest estimated class payment is \$3,713.68, the average payment is \$1,245.34, and the lowest estimated payment is \$11.51. (Id. at ¶ 14.)

Payment to Class Representatives

Plaintiff seeks court approval of a \$7,500 payment to the named class representative, Matthew Stevens. The court intends to approve the requested enhancement payment of \$7,500 to the named plaintiff. Mr. Stevens has provided sufficient detail in his declaration justifying this amount in this instance. Mr. Stevens worked for defendant for over a decade. (Stevens Decl., ¶ 6.) He spent considerable time in assisting with this case. (Id. at ¶ 7.) He notes that he has been seeking new employment since February 2025 and has faced rejection since participating in this matter. (Id. at ¶ 6.) This represents a reasonable amount, commensurate with the evidence of risk incurred in conferring a benefit to the class and sufficient to induce the named plaintiff to participate in the suit.

Attorneys' Fees

The settlement provided that the parties agreed to fees calculated at one-third of the gross settlement amount or \$83,333.33. An Escalator Clause was triggered when calculating the number of actual workweeks, increasing the anticipated settlement amount from \$250,000 to \$265,624.72. Thus, counsel seeks \$88,541.57 in attorney's fees consistent with the increased settlement amount. Counsel has provided evidence of the time expended by the attorneys representing plaintiff and the class throughout this action to support the lodestar amount, as a cross-check of the percentage-based fees requested.

As a general rule, the lodestar method is the primary method for calculating the amount of class counsel's attorney's fees; however, the percentage-of-the benefit approach may be proper when there is a common fund. In some cases, it may be appropriate, when the monetary value of the class benefit can be determined with a reasonable degree of certainty, such as this one, for the judge to cross-check or adjust the lodestar amount in comparison to a percentage of the common fund to ensure that the fee awarded is reasonable and within the range of fees freely negotiated in the legal marketplace in comparable litigation. (See *Laffitte v. Robert Half Int'l, Inc.* (2016) 1 Cal.5th

The lodestar analysis is based on a "careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case." (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) As our Supreme Court has repeatedly made clear, the lodestar consists of "the number of hours *reasonably expended* multiplied by the *reasonable* hourly rate. . . ." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, italics added; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1134.) Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (*Id.* at p. 1133.) The hourly rates are high for Fresno County and plaintiff has not explained why he retained out of town counsel.

With the adjusted billing rates, the court sets the lodestar at \$69,150. The court will approve \$69,150 for attorneys' fees. The remainder of attorney's fees reserved should be returned to the common fund for the benefit of the class members.

The Settlement Agreement provides that plaintiff's counsel would be reimbursed costs up to \$20,000.00. The request for actual costs of \$13,392.32 is supported with evidence and will be approved. (Yslas Decl., Exh. 3.)

The court intends to find the amount of \$6,750 as requested for Phoenix Settlement Administrators to be reasonable, and approve the administrator's costs as requested.

Tentative Ruling

17